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END USER LICENSE AGREEMENT

DYNAMIC SOLUTIONS-INTERNATIONAL, LLC dba DSI, LLC

TERMS AND CONDITIONS FOR USE OF EFDC+ EXPLORER MODELING SYSTEM SOFTWARE

REFERENCE: When generating reports, presentations and/or papers that present plots/maps produced in any way using the EFDC+ Explorer Modeling System or the modeling results presented were developed/supported by the EFDC+ Explorer Modeling System, the author must include the following reference and/or acknowledgement:

DSI LLC, 2025. User's Manual For EFDC+ Explorer Modeling System: A Pre/Post Processor for the Environmental Fluid Dynamics Code. Available at https://eemodelingsystem.atlassian.net/l/c/1jEouHv1

DSI LLC. 2024. EFDC+ Theory, Version 12. Published by DSI LLC, Edmonds WA. Available at

https://downloads.eemodelingsystem.com/documents/EFDC_Theory_Document_Ver_12.pdf

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1. DEFINITIONS

   "Agreement" means these Terms and Conditions together with any Purchase Order, if applicable. "DSI" means Dynamic Solutions-International, LLC dba DSI, LLC, a Washington limited liability company, together with its successors and assigns located at 110 W. Dayton St. #202, Edmonds, WA-98020. DSI may sometimes also be referred to herein as "We," "Us" or "Our."

   "Effective Date" means (i) with respect to Purchased Software, the date You initiate a Purchase Order and (ii) with respect to all other Software, the date on which You first access or

use the Software. "Purchase Order" means the documents or web-based purchase requests initiated by You from time to time. Purchase Orders shall be deemed incorporated herein by reference.

"Purchased Software" means Software that You purchase under a Purchase Order and/or in exchange for payment of a license fee, as distinguished from those provided pursuant to a free trial.

"Software" means a version of the EFDC+ Explorer, or Grid+ software that is licensed or provided to You by DSI under a demonstration version, free trial, perpetual license, rental license, web-based subscription, or pursuant to the Purchase Order.

"You" or "Your" means the company or other legal entity for which you are accepting this Agreement. Without limiting the foregoing, "You" shall expressly include any User identified on a Purchase Order.

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3. UPGRADES. Users of Purchased Software who have active software maintenance with DSI for support services will be entitled to receive generally available updates and upgrades at no additional charge. All other updates and upgrades will be subject to DSI's then applicable licensing fees.

4. SUPPORT SERVICES. At your request, DSI will provide customary support services for Purchased Software during Our regular business hours in exchange for payment of Our customary support rates, as established and revised from time to time. Provided, however, DSI shall have no duty to update, modify, correct or take any further action in connection with the Software unless You remain in compliance with this Agreement and pay all support fees then applicable.

5. FREE DEMONSTRATION VERSION.

   (a) If You register on Our website to use the free demonstration mode, DSI will make a version of the Software available to You subject to the terms of this Agreement on a demonstration basis with limited capability free of charge until the earlier of (a) the demonstration mode is terminated or (b) the start date of any Purchased Services ordered by You. Additional demonstration mode terms and conditions may appear in the demonstration mode registration web page. Any such additional terms and conditions are incorporated into this Agreement by reference and are legally binding.

   (b) ANY DATA YOU ENTER INTO YOUR DEMONSTRATION VERSION MAY BE PERMANENTLY LOST AS SAVING CAPABILITIES ARE RESTRICTED. NOTWITHSTANDING ANY OTHER PROVISION OF THIS AGREEMENT, THE DEMONSTRATION VERSION OF THE SOFTWARE ARE PROVIDED "AS-IS" WITHOUT ANY WARRANTY OF ANY TYPE WHATSOEVER, EXPRESS OR IMPLIED.

6. TAXES. Unless otherwise stated, Our fees do not include any taxes, levies, duties or similar governmental assessments of any nature, including but not limited to value-added, sales, use or withholding taxes, assessable by any local, state, provincial, federal or foreign jurisdiction (collectively, "Taxes"). You are responsible for paying all Taxes associated with Your purchases hereunder. If We have the legal obligation to pay or collect Taxes for which You are responsible under this paragraph, the appropriate amount shall be invoiced to and paid by You, unless You provide Us with a valid tax exemption certificate authorized by the appropriate taxing authority.

7. NON-DISCLOSURE AND PROPRIETARY RIGHTS. You acknowledge that all title and interest, including all patents, copyrights and trade secret rights relating to the Software are the exclusive property of DSI, and you further acknowledge that the Software and any information or materials received from, or made available by DSI, including without limitation, user manuals and other documentation is valuable proprietary material owned by DSI (collectively, the "Proprietary Material"). If You or any of Your employees, agents or representatives use or disclose the Proprietary Material in a manner contrary to the terms of this Agreement, We shall have the right, in addition to such other remedies which may be available under applicable law, to immediate injunctive relief against such acts or attempts (without the necessity of posting bond). You warrant that You have not disclosed or permitted the disclosure to any third person of any Proprietary Material prior to the execution or acceptance of this Agreement, and You further agree neither to do nor to permit any act which may in any way jeopardize or be detrimental to the validity of Our patent, copyright, trade secret, contractual, ownership or other rights in the Proprietary Material. You agree to use Your best efforts to maintain the confidentiality of Proprietary Material and to protect Our ownership rights, patents, copyrights and trade secrets, including taking such steps as You take to protect Your own patents, copyrights and trade secrets. Proprietary Material may not be copied except for the internal use by You as a back-up copy for use consistent with your customary computer practices. Any and all back-up copies must include Our patent, copyright and proprietary rights notices and all labels or other features that disclose the Software name. You may not modify or attempt to modify the Software without the prior

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   DSI LLC, 2025. User's Manual For EFDC+ Explorer Modeling System: A Pre/Post Processor for the Environmental Fluid Dynamics Code. Available at https://eemodelingsystem.atlassian.net/l/c/1jEouHv1

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10. DISCLAIMER OF WARRANTY. EXCEPT AS EXPRESSLY PROVIDED HEREIN, DSI DOES NOT MAKE, AND EXPRESSLY DISCLAIMS, ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, WITH REGARD TO THE SOFTWARE AND, IF APPLICABLE THE RELATED SUPPORT SERVICES, INCLUDING WITHOUT LIMITATION ALL IMPLIED WARRANTIES OF MERCHANTABILITY AND FITNESS FOR A PARTICULAR PURPOSE.

11. TERMINATION BY DSI. DSI may, at its option, terminate all or part of its warranties and/or obligations hereunder or the entire Agreement, effective immediately in the event that: (a) You fail to pay DSI any monies due and payable to DSI under this Agreement within ten (10) days after notice of non-payment from DSI; (b) You fail to observe any of Your obligations hereunder with respect to the provisions of confidentiality and trade secret information; or (c) upon thirty (30) days' notice to You, if You neglect or fail to perform or observe any other term or obligation set forth in this Agreement. Upon termination of this Agreement for any reason, You understand and agree that You shall immediately discontinue all use of the Software and that the provisions pertaining to the confidentiality, non-use and nondisclosure of the Proprietary Material and/or any information or material supplied to You by DSI shall survive any such termination.
12. COMPLIANCE WITH LAWS. You must comply with all applicable laws, rules and regulations, if any, in connection with Your use of the Software.
13. HEADINGS. The headings of the paragraphs and sections of this Agreement are for convenience only and do not in any way limit or amplify the terms and provisions of the Agreement.
14. ASSIGNMENT. You may not assign this Agreement nor any of Your rights or obligations hereunder, in whole or in part, without the prior written consent of DSI. For purposes of this paragraph, a change in the persons or entities who control fifty percent (50
15. INDEMNITY.
    (a) DSI shall indemnify and hold You harmless against any and all losses, liabilities, judgments, awards, expenses, and costs (including reasonable legal fees and expenses) arising out of a third party claim that DSI has infringed upon a patent or copyright of such party in connection with Purchased Software. DSI may defend and/or compromise such claim and control any related litigation in its sole discretion with counsel of its choice.
    (b) You shall indemnify and hold DSI (and its employees, agents, members, directors, officers, and representatives) harmless from and against any and all losses, liabilities, judgments, awards, expenses, and costs (including reasonable legal fees and expenses) arising out of or related to any third party claim for personal injury, property damage, loss, cost or expense of any type, including any reasonable expense incurred by DSI in assisting You in defending against such claim, relating in any way to the use of the Software.
16. ENTIRE AGREEMENT. This Agreement, comprised of both these Terms and Conditions and any applicable Purchase Order, completely and exclusively states the agreement of the parties regarding its subject matter. It supersedes, and its terms govern, all prior proposals, agreements, or other communications between the parties, oral or written, regarding such subject matter. This Agreement shall not be modified except by a subsequently dated written amendment or appendix signed by DSI and You and any provision(s) of a purchase order purporting to supplement or vary the provisions hereof shall be void. The failure of either

party to require performance by the other party of any provision thereof shall not affect the full right to require such performance at any time thereafter; nor shall the waiver by either party of a breach of any provision hereof be taken or held to be a waiver of such provision.

17. SEVERABILITY. In the event that any provision of this Agreement is unenforceable or invalid under any applicable law or be so held by applicable court decision, such unenforceability or invalidity shall not render this Agreement unenforceable or invalid as a whole, and, in such event, any unenforceable provision shall be changed and interpreted so as to best accomplish the objectives of such unenforceable or invalid provision within the limits of applicable law or applicable court decisions.

18. NOTICES. Any notices, reports or other communications required or permitted under this Agreement shall be sent in writing by either: (1) certified, registered, or express U.S. mail, return receipt requested; (2) FedEx or other widely recognized overnight courier service capable of providing delivery information; or (3) email with "read-receipt". Each such notice shall be deemed duly given upon confirmation of delivery. Notices to You may be sent to the contact information You provided Us upon registration for the Software. Notices You send to Us shall be sent to P.O. 1916 Edmonds, WA 98020 United States.

19. FORCE MAJEURE. Neither party shall be liable hereunder by reason of any failure or delay in the performance of its obligations under this Agreement, except for the payment of money, on account of strikes, shortages, riots, insurrection, fires, flood, storm, machine or utility failures, explosion, acts of God, war, governmental action, labor conditions, criminal or terrorist attack, national emergency, earthquakes, material shortages, or any other cause which is beyond the reasonable control of such party.

20. REMEDIES FOR BREACH. In the event You breach the terms of this Agreement, including any unauthorized use of the Software, DSI will be entitled to injunctive relief (without the necessity of posting bond), the recovery of all versions of the Software, damages, and all attorneys' fees and litigation expenses incurred by DSI. The parties agree that the measure of damages for any unauthorized use of the Software shall not be less than then-applicable standard purchase price for a version of the Purchased Software, as to each unauthorized user, on a per user basis.

21. NOTICE TO U.S. FEDERAL GOVERNMENT END USERS. The Software and related documentation qualify as "commercial items," as that term is defined at Federal Acquisition Regulation ("FAR") (48 C.F.R.) 2.101, consisting of "commercial computer software" and "commercial computer software documentation" as such terms are used in FAR 12.212. Consistent with FAR 12.212 and DoD FAR Supp. 227.7202-1 through 227.7202-4, and notwithstanding any other FAR or other contractual clauses to the contrary in any agreement into which this Agreement may be incorporated, the government end user will acquire the Software and related documentation with only those rights set forth in the Agreement. If a government agency has a need for rights not conveyed under these terms, it must negotiate with Us to determine if there are acceptable terms for transferring such rights, and a mutually acceptable written addendum specifically conveying such rights must be included in any applicable contract or agreement. Use of either the Software or related documentation or

both constitutes agreement by the government that the Software and related documentation are "commercial computer software" and "commercial computer software documentation," and constitutes acceptance of the rights and restrictions herein.

AGENCY. Nothing contained herein shall be construed as creating any agency, partnership, or other form of joint enterprise between the parties.

22. VENUE AND APPLICABLE LAW. As to the relationship between the parties, as set forth in this Agreement, including any disputes which may arise between the parties, the internal, substantive laws of the State of Washington in the United States of America shall govern, without regard to any choice or conflict of law provisions contained therein. Any suit or action arising out of or related to this Agreement may only be brought in the state or federal courts located in Edmonds, Snohomish County, Washington. You hereby submit to the personal jurisdiction of such courts and waive any objection based on venue or forum non conveniens. The parties specifically exclude from application to this Agreement the United Nations Convention on Contracts for the International Sale of Goods and the Uniform Computer Information Transactions Act.

23. FULL POWER. Each party warrants that it has full power to enter into and perform this Agreement, and the person signing or accepting this Agreement on each party's behalf has been duly authorized and empowered to enter into this Agreement. The individual accepting this Agreement on Your behalf personally warrants and represents that he/she has full authority to bind and obligate You to the terms and conditions of this Agreement. You further acknowledge that You have read this Agreement, understand it, and agree to be bound by it.

24. CONFIDENTIALITY. You may not disclose the terms of this Agreement or of any ancillary agreement, whether oral or written, to any third party without the prior written consent of DSI. DSI shall have the right to monitor Your use of the Software from time to time as desired including without limitation to monitor usage trends and feature demand. During the term of this Agreement and surviving its expiration or termination, DSI will regard and use reasonable efforts to preserve as confidential all information that may be obtained from You.

    Confidential information does not include: (a) information that is publicly known prior to disclosure or becomes publicly known through no wrongful act of DSI; (b) information that was in lawful possession of DSI prior to the disclosure and was not received as a result of any breach of confidentiality; (c) information that was independently developed by DSI outside the scope of this Agreement; (d) information disclosed by operation of or as required by law; or (e) disclosure of the existence of this Agreement.